

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jessica Welker	Team: Team # 8	CCRB Case #: 200914912	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Friday, 09/18/2009 5:45 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 3/18/2011	Precinct: 75		
Date/Time CV Reported Mon, 09/21/2009 12:00 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 09/23/2009 3:38 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			NARCBBN
2. DT3 Dennis Friendly	02755	930185	NARCBBN
3. An officer			NARCBBN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Demos Marinakos	07028	901910	NARCBBN
2. DT3 Christop Ward	06633	907551	NARCBBN
3. POM Antonio Santana	30589	933323	NARCBBN

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: Officers entered and searched § 87(2)(b)	A . Exonerated
B . DT3 Dennis Friendly	Abuse: Det. Dennis Friendly refused to provide his name and shield number to § 87(2)(b)	B . Unsubstantiated
C . DT3 Dennis Friendly	Force: Det. Dennis Friendly used physical force against § 87(2)(b)	C . Substantiated
D . An officer	Discourtesy: An officer spoke rudely to § 87(2)(b)	D . Alleged Victim Uncooperative

Case Summary

On September 19, 2009, § 87(2)(b) called IAB and filed a complaint on behalf of her son, § 87(2)(b) (encl. 4). § 87(2)(b) did not witness this incident. On September 23, 2009, the case was referred to the CCRB (encl. 5a-5b).

On September 18, 2009, at approximately 5:45 p.m. § 87(2)(b) was sitting with § 87(2)(b) and § 87(2)(b) on the front porch of § 87(2)(b) when officers from Brooklyn North Narcotics approached them. The following resulted:

- **Allegation A-Abuse of Authority:** Officers entered and searched § 87(2)(b) § 87(2)(g) § 87(2)(b)
- **Allegation B-Force:** Detective Dennis Friendly refused to provide his name and shield number to § 87(2)(b) § 87(2)(g) § 87(2)(b)
- **Allegation C-Abuse of Authority:** Detective Dennis Friendly used physical force against § 87(2)(b) § 87(2)(g) § 87(2)(b)
- **Allegation D-Discourtesy:** An officer used discourteous language towards § 87(2)(b) § 87(2)(g) § 87(2)(b)

Results of Investigation

Civilian Statement

Complainant: § 87(2)(b)

- § 87(2)(b) § 87(2)(b)

CCRB Statement

On October 2, 2009, the CCRB interviewed § 87(2)(b) (encl. 6a-6d). On September 18, 2009, at approximately 5:45 p.m., § 87(2)(b) was sitting on the front porch of § 87(2)(b) with his friends, § 87(2)(b) and § 87(2)(b). § 87(2)(b) was visiting § 87(2)(b) who resides at the location. Officers from Brooklyn North Narcotics arrived in unmarked vehicles and approached § 87(2)(b). Some police officers ran straight into the house and some approached § 87(2)(b). § 87(2)(b) and § 87(2)(b) were all handcuffed. § 87(2)(b) did not resist in any way. § 87(2)(b) asked an officer, identified by the investigation as Detective Dennis Friendly of Brooklyn North Narcotics, why he was being handcuffed. Detective Friendly told him that he would get back to him later. When § 87(2)(b) asked Detective Friendly for his badge number, Detective Friendly tucked his shield under his shirt. An officer identified by the investigation as Detective Christopher Ward of Brooklyn North Narcotics, walked § 87(2)(b) to the prisoner van with Detective Friendly. § 87(2)(b) and § 87(2)(b) were escorted to the van behind § 87(2)(b).

As they were walking to the van, § 87(2)(b) asked Detective Friendly for his badge number, which he refused to provide. At the door of the van, § 87(2)(b) asked Detective Ward to lift his pants up to get into the van because he pants were sagging. When Detective Ward started to lift § 87(2)(b)'s pants up, Detective Friendly grabbed § 87(2)(b) by his clothing and threw him into the van. § 87(2)(b) landed face forward on the backseat. Detective Friendly then entered the van and punched § 87(2)(b) in the right side of his face. Detective Friendly told § 87(2)(b) to get into the back seat. § 87(2)(b) was upset and told Detective Friendly that he punched him while he was in handcuffs. Detective Friendly then grabbed § 87(2)(b) by his clothing and threw him into the backseat. § 87(2)(b) landed face forward on the seat. Detective Friendly then punched § 87(2)(b) in the right side of the face again.

§ 87(2)(b) later saw Detective Friendly's shield number on the way to the 75th Precinct stationhouse and remembered it as, 2577. § 87(2)(b) was arrested for § 87(2)(b), § 87(2)(a) 160.50 § 87(2)(b). § 87(2)(b) refused to go to the hospital at the 75th Precinct stationhouse because Detective Friendly indicated that he would be the officer escorting him. § 87(2)(b) was taken to § 87(2)(b) in police custody after he arrived at central booking. § 87(2)(b) sustained swelling on the right side of his face as a result of this incident.

Attempts to Contact Civilians

§ 87(2)(b) was arrested at the incident location. On September 28, 2009, and October 15, 2009, the CCRB sent please call letters to § 87(2)(b). The CCRB does not have a phone number for § 87(2)(b). A search of CTS, White Pages, Cole's Directory, and Lexis Nexis revealed negative results. A Verizon subpoena also revealed negative results. § 87(2)(b) has not responded to the CCRB (encl. 16a-16r).

§ 87(2)(b) was arrested at the incident location. On September 28, 2009, and October 7, 2009, the CCRB sent please call letters to § 87(2)(b). Between October 5, 2009, and October 15, 2009, the CCRB called § 87(2)(b) six times and left messages asking to please call back. § 87(2)(b) has not responded to the CCRB (encl. 16a-16r).

§ 87(2)(b) On October 20, 2009, the CCRB spoke with § 87(2)(b) over the phone (encl. 7). § 87(2)(b) was arrested outside of § 87(2)(b). When he was asking what was going on, an unidentified officer said, "Shut the fuck up."

On October 27, 2009, § 87(2)(b) missed his scheduled interview with the CCRB. A missed appointment letter was sent to him that day. Between November 4, 2009, and November 9, 2009, the CCRB called § 87(2)(b) three times and left messages asking to please call back to reschedule his interview. A final please call letter was sent to § 87(2)(b) on November 9, 2009. § 87(2)(b) has not responded to the CCRB (encl. 16a-16r).

NYPD Statements:

Subject Officer: DETECTIVE DENNIS FRIENDLY

- *Detective Friendly is a § 87(2)(b)-old black male with black hair and brown eyes. He is 5'11" tall and weighs 185 pounds.*
- *On September 18, 2009, Detective Friendly was scheduled to work bunker security during a narcotics search warrant execution with Detective Ward. He was dressed in plainclothes and assigned to an unmarked van.*

Memo Book

Detective Friendly has the following memo book entries regarding this incident (encl. 8a-8c). "1725: Tac meet s/w. 1730: ERT § 87(2)(b) 1740: A/A re, execute s/w. 1745: 3 under."

CCRB Statement

On February 25, 2010, the CCRB interviewed Detective Dennis Friendly of Brooklyn North Narcotics (encl. 8d-8e). On September 18, 2009, at approximately 5:45 p.m. Detective Friendly was assigned to bunker security during the execution of a search warrant at § 87(2)(b) in Brooklyn. Detective Friendly entered the location with other officers from his field team and secured the premises. After the premises were secure, Detective Friendly exited the location. Detective Marinakos and Sergeant Cahill stayed inside the location to conduct a search. Several individuals were handcuffed at the location, but Detective Friendly did not remember where they were handcuffed. Detective Friendly did not handcuff any individuals. He did not recognize an arrest photograph of § 87(2)(b) or § 87(2)(b). Detective Friendly did not recall whether he specifically interacted with any of the individuals who were arrested at the location. He did not escort or place any prisoners into the van. Detective Friendly recalled interacting with § 87(2)(b) § 87(2)(b)'s wife. He was interacting with her when prisoners were placed in the van. He did not see prisoners being placed in the van. Detective Friendly did not have physical contact with § 87(2)(b) § 87(2)(b). He did not punch § 87(2)(b). He did not throw § 87(2)(b) into the van. Nobody requested his name and shield number. Detective Friendly did not recall who was working the prisoner van at the time of this incident. Later in his tour, he was assigned to the prisoner van. None of the prisoners from this incident had physical injuries.

Witness Officer: DETECTIVE CHRISTOPHER WARD

- *Detective Ward is a § 87(2)(b)-old white male with brown hair and green eyes. He is 5'8" tall and weighs 250 pounds.*
- *On September 18, 2009, Detective Ward was assigned to execute a search warrant with his field team from 3:27 p.m. to 12:00 a.m. He was dressed in plainclothes and assigned to an unmarked vehicle.*

CCRB Statement

On March 16, 2010, the CCRB interviewed Detective Christopher Ward of Brooklyn North Narcotics (encl. 10a-10d). On September 18, 2009, Detective Ward was assigned to the cuff and toss. When Detective Ward and members of the field team arrived at § 87(2)(b) they walked past three individuals on the front stoop. Detective Ward did not stop those individuals or handcuff them. Those three individuals were handcuffed by unidentified officers. Detective Ward was already inside of the location when those individuals were handcuffed. Detective Ward was inside the location for approximately five minutes. When Detective Ward exited the location, three prisoners were standing in handcuffs in front of the location. Unidentified officers

then escorted the prisoners to the van. Detective Ward stayed on the front stoop at this time as front security. The prisoner van was approximately 20 yards away from Detective Ward. Detective Ward did not recall where Detective Friendly was at this point. Detective Ward did not see a struggle between officers and prisoners when they were being placed in the van. Detective Ward did not see Detective Friendly punch a prisoner. Detective Ward did not see Detective Friendly push or throw any prisoners into the van. Detective Ward did not see any officers inside the back area of the van with prisoners. Detective Ward did not know which officers were assigned to the prisoner van. The rest of the field team left the location and proceeded to execute another search warrant. Detective Ward stayed at the location as front security while Detective Marinakos searched until 8:00 p.m. When Detective Ward went back to the stationhouse, he did not hear prisoners complain of any force that officers used or complain of any injuries. According to Detective Ward's memo book, he was later assigned to the prisoner van with Detective Friendly to escort prisoners to central booking.

Witness Officer: DETECTIVE DEMOS MARINAKOS

- *Detective Marinakos is a § 87(2)(b)-old white male with brown hair and brown eyes. He is 5'10" pounds and weighs 190 pounds.*
- *On September 18, 2009, Detective Marinakos was scheduled to be the arresting officer for the execution of a search warrant. He was dressed in plainclothes and assigned to an unmarked vehicle.*

CCRB Statement

On March 16, 2010, the CCRB interviewed Detective Demos Marinakos of Brooklyn North Narcotics (encl. 9a-9e). On September 18, 2009, at approximately 5:45 p.m. Detective Marinakos arrived at § 87(2)(b). When he arrived at the location, he saw several individuals exit the location and sit on the front stoop. They left the front door open. Detective Marinakos and additional unidentified officers walked past these individuals and entered the house. The officers did not have to use force to open the door because it was already ajar. Detective Marinakos did not say anything to the individuals on the front stoop. As he walked past them, unidentified officers handcuffed them. Detective Marinakos did not see when the officers handcuffed them. He did not hear a struggle. Detective Marinakos entered the location and determined that nobody was inside and the premises were secure. He was inside the location for approximately ten minutes.

When Detective Marinakos exited the location, unidentified officers were placing prisoners in the van. The van was parked directly in front of the location. Detective Marinakos did not see Detective Friendly push or throw a prisoner into the van. He did not see Detective Friendly punch a prisoner. He did not see Detective Friendly enter the back area of the van. He did not recall who was assigned to the prisoner van. He did not hear individuals request the name and shield number of any officers. Detective Marinakos stayed at the location until approximately 8:00 p.m. to conduct a search with Sergeant Cahill. When he went back to the stationhouse, none of the prisoners complained about physical force that officers used or any type of physical injuries.

Witness Officer: PO ANTONIO SANTANA

- *PO Santana is a § 87(2)(b)-old Hispanic male with brown hair and brown eyes. He is 5'9" tall and weighs 176 pounds.*
- *On September 18, 2009, PO Santana was scheduled to hospital auto for a search warrant execution. He was dressed in plainclothes with a raid jacket and assigned to an unmarked vehicle.*

CCRB Statement

On April 16, 2010, the CCRB interviewed PO Antonio Santana of Brooklyn North Narcotics (encl. 11a-11e). On September 18, 2009, at approximately 5:00 p.m. PO Santana and the field team arrived at § 87(2)(b) to execute a search warrant. PO Santana was the only one doing outside security at the location. The rest of the field team entered the location. PO Santana remembers that individuals were yelling and screaming. PO Santana did not recall if individuals were handcuffed inside or outside of the location. He was not present when individuals were handcuffed. He did not recall if he was present when prisoners were placed in the prisoner van. He did not recall if Detective Friendly threw or pushed any individuals into the prisoner van. He did not recall if Detective Friendly punched any prisoners. PO Santana did not recognize a photograph of § 87(2)(b). He did not know which officers were assigned to the prisoner van. PO Santana viewed the tact plan, which did not refresh his memory. PO Santana did not hear any individuals request the name and shield number of an officer. He did not hear any prisoners complain of injuries. He did not recall if any individuals had any visible injuries. Following the execution of the search warrant at § 87(2)(b), PO Santana and other members of the field team left the location to execute another search warrant.

Medical Records

On September 19, 2009, § 87(2)(b) was taken to § 87(2)(b). The ambulance call report indicates that § 87(2)(b) was punched in the face. He complained of pain to the right side of his face and EMTs noted swelling to his face. § 87(2)(b) told medical personnel at § 87(2)(b) that he was punched in the right cheek area. § 87(2)(b) diagnosed § 87(2)(b) with swelling and a contusion to the right side of the face (encl. 12a-12t).

NYPD Documents

Search Warrant

A search warrant was obtained by the NYPD from the Supreme Court of the State of New York, New York County. The Honorable § 87(2)(b), was the issuing justice. The warrant authorized any police officer of the City of New York to make an entry and search of the first floor apartment at § 87(2)(b) in Brooklyn for crack cocaine, crack cocaine paraphernalia, documents relating to the illegal trafficking of crack cocaine, and any U.S. currency relating to the illegal trafficking of crack cocaine. The warrant was issued on § 87(2)(b), with the specification that it be executed within ten days of issuance (encl. 13a-13b).

Pre Execution Plan

The pre-execution search warrant plan indicates that Detective Marinakos was the requesting officer and Sergeant James Cahill was the supervising officer of the search warrant

(encl. 5b-5c). Instructions for the execution indicate that the entry team would force the apartment door open, secure all persons therein, and conduct a search of the premises (encl. 13d).

Command Log

The command log does not indicate that § 87(2)(b) had any injuries (encl. 13g).

Arrest Photo

§ 87(2)(b)'s arrest photo depicts minor swelling to the right cheek area (encl. 13v).

Summons/Arrest for Incident and Disposition

- As of May 11, 2010, Office of Court Administration records reveal that all criminal charges for § 87(2)(b) in connection with the incident on September 18, 2009, are sealed.

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of May 10, 2010, with regard to the incident (encl. 17a).

Civilian Criminal History

- § 87(2)(b) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 3).

Subject Officer CCRB History

- Detective Friendly has been a member of the service for seven years and there are no substantiated CCRB allegations against him (encl. 2a-2b).

Conclusion

Identification of Subject Officers

- Because multiple officers entered and searched the location, Allegation A was pleaded against “Officers” from Brooklyn North Narcotics.
- § 87(2)(b) said that the shield number of the subject officer was 2577. Detective Friendly is the only officer assigned to the Brooklyn North Narcotics tactical plan with similar shield number, 2755. In addition, the detailed description that § 87(2)(b) provided matches Detective Friendly’s pedigree information. Allegation B and Allegation C were therefore pleaded against Detective Friendly.
- Without a statement from § 87(2)(b) or additional evidence, the investigation was unable to identify the officer who allegedly used discourteous language towards him. Allegation D was therefore pleaded against “An officer” from Brooklyn North Narcotics.

Investigative Findings and Recommendations

Allegation A-Abuse of Authority: Officers entered and searched § 87(2)(b)

The “no knock” search warrant was issued on § 87(2)(b), and executed on September 18, 2009, within the authorized time period. § 87(2)(g)

§ 87(2)(g)

Allegation B-Abuse of Authority: Detective Dennis Friendly refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(g)

Allegation C-Force: Detective Dennis Friendly used physical force against § 87(2)(b)

According to § 87(2)(b) Detective Friendly grabbed him by his clothing, threw him into the prisoner van, and punched him on the right side of the face twice. § 87(2)(b) provided consistent statements regarding this use of force to the CCRB, EMTs, and medical personnel at § 87(2)(b). In addition, the initial complaint filed by § 87(2)(b)'s mother, who was not present at the incident, indicates that § 87(2)(b) was punched in the face. § 87(2)(b)'s arrest photograph depicts minor swelling to the right side of his face. His medical records indicate that he sustained swelling and bruising to the right side of his face.

Detective Friendly denied throwing § 87(2)(b) into the van or punching him. Detective Friendly did not recall whether he specifically interacted with any of the individuals who were arrested at the location. He did not escort or place any prisoners into the van, nor did he see prisoners being placed in the van. According to Detective Friendly, he was not assigned to the prisoner van at the time of this incident, but he was later assigned to the prisoner van to escort prisoners to central booking. None of the officers interviewed for this case saw Detective Friendly throw § 87(2)(b) into the van or punch him. None of the officers interviewed for this case saw or heard any type of struggle between officers and prisoners, nor did they recall which officers escorted prisoners to the van. None of the individuals arrested during this incident resisted arrest.

§ 87(2)(g)

§ 87(2)(g)

Allegation D-Discourtesy: An officer used discourteous language towards § 87(2)(b)

§ 87(2)(g)

Team: _____

:

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date